

Ken Burke
Clerk of the Circuit Court and Comptroller



Summary Administration – Testate (with a will)

When to use this packet:

Florida Statute 735.201 and Florida Probate Rule 5.530 allow for Summary Administration when it appears that the decedent's will does not direct administration as required by chapter 733 **and** the value of the entire estate, less the value of exempt property does not exceed \$75,000 or that the decedent has been dead for more than two years.

Important Note:

Before you begin, you may want to inquire with the holder of the asset (for example, if the asset is a bank account, contact the bank) to see what may be required for transfer. Depending on the asset and your relationship to the decedent, ***you may only need a death certificate and certified copy of the will.***

Resources:

For Death Certificates: www.FloridaHealth.gov or call: (727) 507-4330 ext. 1200

For vehicles: www.flhsmv.gov

Legal descriptions can be found at <https://www.pcpao.org/>.

For unclaimed property: www.fltreasurehunt.org

No- and low-cost legal assistance: Community Law Program – (727) 582-7480; Clearwater Bar Referral – (727) 461-4880; Gulfcoast Legal Services – (727) 443-0657 or (727) 821-0726; St. Pete Bar Referral –

<https://www.stpetebar.com/page/findanatty>

Florida Statutes: www.flsenate.gov/Laws/Statutes

Florida Probate Rules: <https://www-media.floridabar.org/uploads/2020/01/Probate-Rules-01-01-20.pdf>

Fees:

Filing fee: **\$235.00 if the Non-exempt assets are less than \$1,000.00.**

\$345.00 if the Non-exempt assets are \$1,000.00 or more.

You may wish to order certified copies of your order(s), which are \$1 per page, plus \$2 per document. You will need either a self-addressed, stamped envelope to get your order, or pay an additional \$0.69 for postage.

DISCLAIMER: THIS DOCUMENT IS PROVIDED FOR INFORMATIONAL PURPOSES ONLY AND IS NOT INTENDED TO BE A COMPREHENSIVE REVIEW OF THE LAW OR A SUBSTITUTE FOR LEGAL ADVICE. PLEASE REVIEW THE APPLICABLE STATUTES AND COURT RULES AND CONSULT WITH A QUALIFIED PRIVATE ATTORNEY FOR ASSISTANCE.

Requirements and/or other documents you will need for Summary Administration (Testate): All

yellow box (☐) items indicate documents to be filed with the Clerk. If you do not have **all** of the requested documentation (yellow box items), you may wish to gather those documents before filing for a faster turn-around.

☐ The decedent was a resident of or owned real property in Pinellas County at the time of their death.

☒ You have a certified copy of the death certificate. This must be on the watermarked, textured paper provided by Vital Statistics or the Department of Health. [www.FloridaHealth.gov or call: (727) 507-4330 ext. 1200]

☐ If there is a will, you either have it in your possession or it has been deposited with the clerk. Check one:

☐ To my knowledge, there is no will.

☒ I have the original will (not a copy).

☐ The holder of the original will has already deposited it with the clerk on: (date) _____ under Ref. # _____

☒ The Petition for Summary Administration and Order of Summary Administration (forms included in this packet.

☒ If the decedent had other children, or named other people in their will, you will need a completed and signed waiver and consent form from each of them. There is one form included, you may need to print or copy more blank forms for each to complete and sign.

☐ For each of the assets you are trying to obtain, you will need details and its value. The court needs to know exactly what it is, who has it, and what it is worth. For example:

☐ If the asset is a car: you will need the year, make, model and VIN (vehicle identification number), along with a valuation of it (such as a Kelly Blue Book appraisal from www.kbb.com).

☐ For bank accounts: you will need the bank name, account number and approximate value.

☒ For homestead or exempt property, you will need a petition and proposed order determining the property to be exempt (forms included in this packet). For real estate, be sure to include the ***legal description*** of the property. You can find this at pcpao.gov.

☐ For other assets: give a description of the asset (savings bond, baseball card, check payable to decedent, etc.) any policy/account/serial number and its current market value.

☒ Formal Notice and Proof of Service to Creditors. If the decedent had any debts at the time of their death, you will need to fill out the schedule of creditors, Formal Notice and Proof of Service (forms included). You will then need to send copies of the formal notice, your petition for summary administration, petition for exempt property and petition to determine homestead (if applicable) to ***each creditor*** by certified mail, return receipt requested. When the receipts are returned to you, attach

them to the Proof of Service form and file it in your case. [Florida Probate Rule 5.040(a)] Creditors have 20 days from the time they receive your notice and copy of petition(s) to file an objection.

☐ You will need to send copies of each petition filed to any other heirs or creditors of the decedent. You should also keep a copy for yourself. 

Glossary of terms (from FS 731.201):

Assets – anything owned that has monetary value.

Beneficiary -- means an heir at law in an intestate estate and devisee in a testate estate.

Case Number (or reference number) – this is a number assigned to the case when it is filed. Once filed, please put this number on all other paperwork submitted to the case.

Claim (or claim of creditor) -- means a liability of the decedent, whether arising in contract, tort, or otherwise, and funeral expense.

Creditor – person or business to whom the decedent owed money.

Codicil -- a written amendment to a person's will, which must be dated, signed and witnessed just as a will would be, and must make some reference to the will it amends. A codicil can add to, subtract from or modify the terms of the original will. When the person dies, both the original will and the codicil are submitted for approval by the court (probate) and form the basis for administration of the estate and distribution of the belongings of the writer.

Decedent – a person who has passed away. In this instance, the person whose estate you are trying to Probate.

Descendant -- means a person in any generational level down the applicable individual's descending line and includes children, grandchildren, and more remote descendants. The term "descendant" is synonymous with the terms "lineal descendant" and "issue".

Devise -- when used as a noun, means a testamentary disposition of real or personal property and, when used as a verb, means to dispose of real or personal property by will or trust. The term includes "gift," "give," "bequeath," "bequest," and "legacy." A devise is subject to charges for debts, expenses, and taxes as provided in this code, the will, or the trust.

Devisee -- means a person designated in a will or trust to receive a devise.

Domicile -- means a person's usual place of dwelling and shall be synonymous with residence.

Exempt property -- means the property of a decedent's estate which is described in s. 732.402. See also items (b) through (e) of paragraph 9 of the petition for summary administration.

Homestead -- means the property described in s. 4(a)(1), Art. X of the State Constitution on which at the death of the owner the exemption inures to the owner's surviving spouse or heirs under s. 4(b), Art. X of the State Constitution. For purposes of the code, real property owned in tenancy by the

entireties or in joint tenancy with rights of survivorship is not protected homestead. Legal descriptions can be found at <https://www.pcpao.gov/>.

Intestate – the decedent died without a will. See also Testate.

Petitioner – the person asking the court for an order. This will be you; the person filling out and signing the petition form.

Reference Number (or case number) – this is a number assigned to the case when it is filed. Once filed, please put this number on all other paperwork submitted to the case.

Testate – the decedent had a will before passing. See also Intestate.

Venue – is the appropriate location for a case to be heard by the court. For Probate, the appropriate venue is: the county in this state where the decedent was domiciled before they died, **or** if the decedent had no domicile in this state, then in any county where the decedent's property is located.

About Creditors:

The people or businesses to whom the decedent owed money to must be addressed in the summary administration of the estate. You must make provision for their payment out of the non-exempt assets and serve them Formal Notice of the petitions for Summary Administration, Determine Homestead and Determine Exempt Property (if any) and file proof of that service in this case (forms provided).

Helpful Hints:

1. This packet contains one waiver and consent form. If, from the above, you realize you need waivers and consents from more than one person, print or copy more blank forms.
2. Make copies of your documents **before** you file them. You will not get them back. You are to provide copies of the petition(s) you are submitting to anyone who needs to sign a consent and waiver or any creditors. Keep a copy for yourself. If something is incorrect, the court may ask you to correct it and you will need to refer back to your copy to see what needs correction.
3. Your petitions and orders should match. Petitions are where you are asking the court for something. The order is what you want the court to sign, which makes that action official. Legal descriptions, account numbers, etc. should be the same on both the petition and the order.
4. ***Don't forget to read the documents carefully as you fill them out. You are signing them under penalty of perjury and are responsible for any errors or omissions.***

What will happen next?

The court will review the documents you have provided and may request any documents you are missing or that need correction, sign the proposed order(s) establishing distribution of the assets, or take other action as necessary. Other parties, such as creditors or other heirs, may also file documents

in the case. If an order is signed, agencies such as the Dept. of Motor Vehicles and banks will require a certified copy of the order to release assets or transfer title.

How long does it take?

It is hard to predict the court's case load, and it will depend on many factors, including whether creditors or other heirs have filed anything in the case. However, providing all of the documents required initially will help expedite the process. You will receive notice of any filings, scheduled hearings, etc., at your designated email address. Once an order is issued, you will be mailed any certified copies for which you have pre-paid.

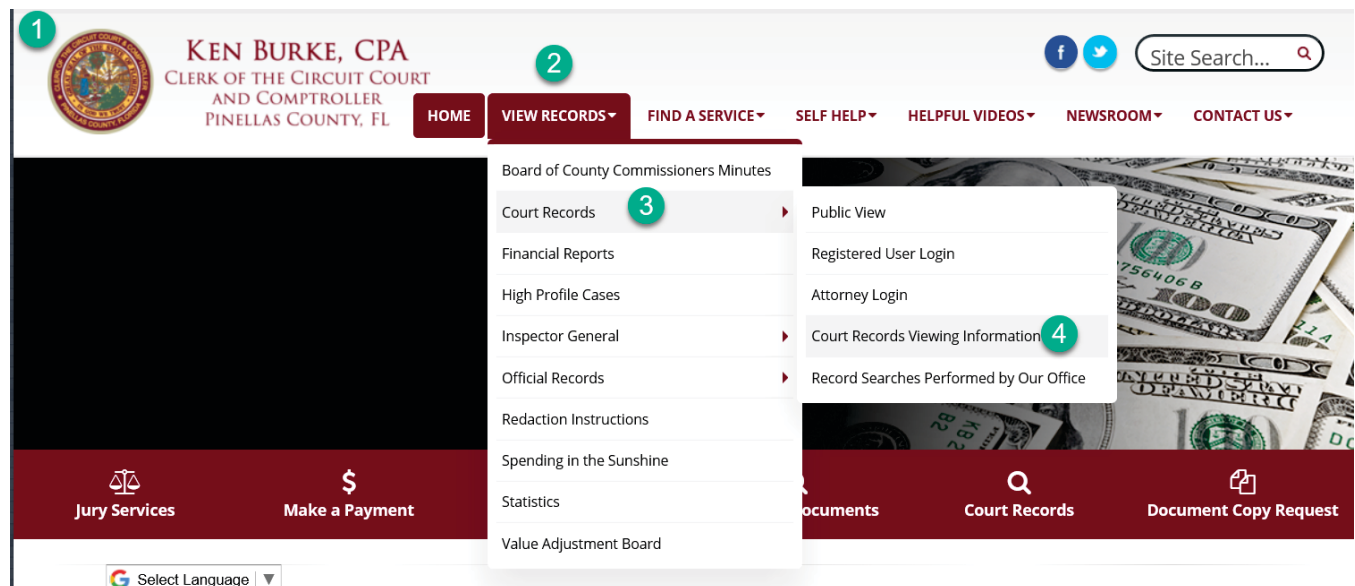
What does it mean if I get a different order from the court?

Often when your paperwork is not filled out correctly or completely, you will get an order checklist from the court identifying what needs correction. If you must amend a petition simply use the blank petition form, write 'AMENDED' above the petition title, and complete with corrected information as necessary.

PROBATE LAW CAN BE COMPLICATED. THIS DOCUMENT IS PROVIDED FOR INFORMATIONAL PURPOSES ONLY AND IS NOT INTENDED TO BE A COMPREHENSIVE REVIEW OF THE LAW OR A SUBSTITUTE FOR LEGAL ADVICE. PLEASE REVIEW THE APPLICABLE STATUTES AND COURT RULES FOR MORE DETAILS, AND CONSIDER CONSULTING WITH A QUALIFIED PRIVATE ATTORNEY FOR ASSISTANCE. RESOURCES FOR LOW-COST LEGAL ASSISTANCE ARE LISTED ABOVE.

If you want to **view your case online**, you may want to sign up to be a registered user. To do this:

1. Please go to mypinellasclerk.org,
2. Click on View Records.
3. Select Court Records from the drop down,
4. Then, select Court Records Viewing Information



**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

**Petition for Summary Administration
Testate – FL Resident**

Petitioner alleges:

1. **Petitioner**, whose name is _____, has an interest in the above estate as _____, and whose address is _____.
2. **Decedent**, whose name was _____, whose last known address was (full street address, city, state and zip) _____ and whose Social Security number is (last 4 digits only) _____. Died on (date of death) _____ at (location of death) _____, and on the date of death decedent was **domiciled** in (county and state) _____.
3. So far as is known, the names of the heirs under the will and of decedent's surviving spouse, if any, their addresses and relationship to decedent, and the year of birth of any who are minors (don't forget to include yourself):

NAME	ADDRESS	Relationship to decedent	Year of Birth (if a Minor)

4. The **venue** of this proceeding is in Pinellas county because _____.

5. The original of the decedent's last will, dated (date the decedent signed their will) _____ and **codicil(s)**, if any, dated _____ is/are in the possession of the above court or accompany/accompanies this petition.
6. Petitioner is unaware of any unrevoked will or codicil of decedent other than as set forth in paragraph 5.
7. Petitioner is entitled to summary administration because (check only those boxes that apply):
☐ Decedent's will does not direct administration as required by Florida Statutes Chapter 733;
☐ To the best knowledge of the petitioner, the value of the entire estate subject to administration in this state, less the value of property exempt from the claims of creditors, does not exceed \$75,000.
☐ The decedent has been dead for more than two years.
8. Domiciliary (or principal probate) proceedings (check one only): ☐ are ☐ are not known to be pending in another state or country. (If 'are' was selected, complete the following): Letters have been issued by (county and state of jurisdiction) _____ the _____ address _____ of _____ which _____ is: _____
to (person named Personal Representative or Executor in other state/country) _____ whose address is: _____.
9. The following is a complete list of the assets in this estate and their estimated values, separated by exempt or non-exempt status:

Homestead/EXEMPT property includes: **(a) Homestead property, (b) Household furniture, furnishings, and appliances** in the decedent's residence **up to** a value of **\$20,000**. **(c) Two (2) motor vehicles** in the decedent's name and regularly used by the decedent or members of the decedent's immediate family as their personal vehicles. **(d) All qualified tuition programs**, including, but not limited to, the Florida Prepaid College Trust Fund. **(e) Other personal property** (including cash) up to a value of \$1,000. **Be aware that if a property is listed, you will need to complete the Petition and proposed Order Determining Homestead for the court. Any other assets listed here, should also be added to the Petition and proposed Order to Determine Exempt Property and submitted to the court.**

Item:	Description (For real property, include mailing and legal addresses; for vehicles, include make, model, year, color and VIN#)	Value
Total of above:		

NON-EXEMPT includes any personal or real property that is not listed above as exempt. Include the balance of an item – such as a bank account- that exceeds the \$1000 from above.		
Item:	Description – provide as much information as possible, such as account numbers (and name of Bank), serial numbers, VIN numbers.	Value
Total of above:		

10. With respect to claims of creditors (check only those boxes that apply):

☐ All claims of creditors are barred.

☐ Petitioner has made diligent search and reasonable inquiry for any known or reasonably ascertainable creditors and (check one):

☐ the estate is not indebted.

☐ the estate is indebted and provision for the payment of debts and the information required by Florida Statutes Section 735.206 and Florida Probate Rule 5.530 are set forth on the attached schedule.

11. All creditors ascertained to have claims and which have not joined in the petition or consented to entry of the order requested will be served by formal notice with a copy of this petition.

Petitioner acknowledges that any known or reasonably ascertainable creditor who did not receive timely notice of this petition and for whom provision for payment was not made may enforce a timely claim and, if the creditor prevails, shall be awarded reasonable attorney's fees as an element of costs against those who joined in the petition.

12. It is proposed that all assets of the decedent (listed in paragraph 9) be distributed to the following:

Name	Property/Asset	Amount or Value

Petitioner waives notice of hearing on this petition and requests that the decedent’s last will and codicil(s), if applicable, be admitted to probate and an order of summary administration be entered directing distribution of the assets in the estate in accordance with the schedule set forth in paragraph 12 of this petition.

I certify that all parties listed in paragraph 3 and on the schedule of creditors have been provided copies of this petition.

Under penalties of perjury, I declare that I have read the foregoing, and the facts alleged are true, to the best of my knowledge and belief.

(Signature of Petitioner)

(Address of Petitioner)

(Printed name of petitioner)

(City, State, Zip)

(Telephone)

(Date Signed)

Schedule of Creditors

Name and Address of Creditor	Nature of Debt	Amount of Debt	Is amount estimated or exact?	When the debt is due

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

PETITION TO DETERMINE HOMESTEAD STATUS OF REAL PROPERTY
(Testate)

Petitioner, _____ alleges:

1. The decedent, _____ died testate on (date of death)
_____, domiciled in Pinellas County, Florida, and was survived by:

[Check only those boxes that apply]

- ☐ A spouse who HAS NOT waived his or her homestead rights.
☐ A spouse who HAS waived his or her homestead rights.
☐ One or more MINOR children.
☐ One or more devisees who are neither a spouse nor a minor child of the decedent.

2. At the time of the decedent's death, the decedent owned and resided on the following described contiguous parcel of real property (the "Property"):

Residential Address: _____

Legal Description: _____

3. Decedent's last will [and codicils, if any] admitted to probate and record by Order of this Court devised the Property as follows: _____

4. Petitioner believes the Property was validly devised because: _____

5. The Property constituted the homestead of the decedent within the meaning of Section 4 of Article X of the Constitution of the State of Florida, and petitioner believes that upon decedent's death, title to the Property descended to and the constitutional exemption from claims of decedent's creditors inured to: _____

6. The name of the decedent's surviving spouse, if any, the names and years of birth of the decedent's minor children, if any, and the names of the decedent's other surviving descendants and devisees having an interest in the decedent's estate, if any, and their respective relationships to the decedent are:

Name	Relationship	Year of Birth (if minor)
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

7. The only persons, other than the petitioner, having an interest in this proceeding, including unpaid creditors, and their respective addresses are:

Name	Address
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

Petitioner requests that an order be entered determining that the Property constituted the exempt homestead of the decedent, title to which, upon decedent's death descended and the constitutional exemption from claims inured as set forth in paragraph 5; directing those in possession of the property to surrender possession of the Property; and directing that they shall have no further responsibility with respect to the Property.

I certify that all parties listed in paragraphs 6 and 7 have been provided copies of this petition.

Under penalties of perjury, I declare that I have read the foregoing, and the facts alleged are true, to the best of my knowledge and belief.

(Signature of Petitioner)

(Address of Petitioner)

(Printed name of Petitioner)

(City, State, Zip)

(Telephone)

(Date Signed)

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

PETITION TO DETERMINE EXEMPT PROPERTY

(Testate)

Petitioner, _____ alleges:

1. The decedent, _____ died testate on (date of death)
_____, domiciled in Pinellas County, Florida, and was survived by:

[Check one]

☐ A spouse.

☐ One or more children.

2. At the time of the decedent's death, the decedent owned the following described property (the
"Property"):

Asset	Description	Value
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

3. This petition is filed within the time permitted by Section 732.402(6) of the Florida Probate Code.
4. Pursuant to the provisions of Section 732.402 of the Florida Probate Code, the exempt property of the decedent is subject to any perfected security interests.
5. The name of the decedent's surviving spouse, if any, and the names and years of birth of the decedent's children, if any, and their respective relationships to the decedent are:

Name and Address	Relationship	Year of Birth (if minor)
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

6. The only persons, other than the petitioner, having an interest in this proceeding, including unpaid creditors, and their respective addresses are:

Name	Address
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

Petitioner hereby: waives notice of hearing on this petition; requests that an order be entered determining that the above listed Property constituted exempt property under Section 732.402 of the Florida Probate Code; and authorizing and directing those who are in possession of the property to deliver the exempt property to the persons entitled to receive the same.

I certify that all parties listed in paragraphs 5 and 6 have been provided copies of this petition.

Under penalties of perjury, I declare that I have read the foregoing, and the facts alleged are true, to the best of my knowledge and belief.

(Signature of Petitioner)

(Address of Petitioner)

(Printed name of Petitioner)

(City, State, Zip)

(Telephone)

(Date Signed)

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

FORMAL NOTICE

TO [Name(s) and addresses of who you are sending notice to]:

YOU ARE NOTIFIED that a Petition for Summary Administration, Petition to Determine Homestead status, if filed, and Petition to Determine Exempt Property, if filed, has been filed in this court, a copy of which accompanies this notice. You are required to serve written defenses on the undersigned within 20 days after service of this notice, exclusive of the day of service, and to file the original of the written defenses with the clerk of the above court either before service or immediately thereafter. Failure to serve and file written defenses as required may result in a judgement or order for the relief demanded in the pleading or motion without further notice.

☐ **Check this box if the petitions you are attaching are amended.**

(Signature of Petitioner)

(Address of Petitioner)

(City, State, Zip)

(Printed name of Petitioner)

(Date Signed)

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

PROOF OF SERVICE OF FORMAL NOTICE

Under penalties of perjury, I swear or affirm that on (date) _____, a copy of the Petition for Summary Administration, the Petition to Determine Homestead Status (if filed), Petition to Determine Exempt Property (if filed) and a copy of the formal notice thereof filed in the above proceeding were mailed by United States registered or certified mail, return receipt requested, postage prepaid, or were delivered in a manner permitted by Florida Probate Rule 5.040(a) to:

(Names and addresses of those to whom notice was sent)

☐ Check this box if the petitions you attached to the notice were amended.

Signed receipts or other evidence that service was made on each address or the addressee's agent are attached.

(Signature of Petitioner)

(Address of Petitioner)

(City, State, Zip)

(Printed name of Petitioner)

(Date Signed)

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

CONSENT AND WAIVER OF NOTICE

The undersigned, whose name is (name of beneficiary) _____, and who has an interest in this estate as (relationship) _____ of the decedent, acknowledges receipt of a copy of the Petition for Summary Administration, Petition to Determine Homestead (if filed), and Petition to Determine Exempt Property (if filed) heretofore filed in this proceeding, waives hearing and notice of hearing thereon, and consents to the entry of an order granting the relief requested in the petition(s) without notice or hearing.

☐ **Check here if you are consenting to amended petition(s)**

Under penalties of perjury, I declare that I have read the foregoing and the facts alleged are true, to the best of my knowledge and belief.

(Signature of Affiant)

(Address of Affiant)

(Printed name of Affiant)

(City, State, Zip)

(Telephone)

(Date Signed)

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

ORDER ADMITTING WILL TO PROBATE

(Summary Administration: Self-proved or Oath of Attesting Witness)

The instrument presented to this Court as the above Decedent's last will, having been legally executed, and *either a)* established by the oath of a subscribing and attesting witness as being the Decedent's last will, *or b)* made self-proved by the Decedent's acknowledgment and the witnesses' affidavits, each made before an officer authorized to administer oaths and evidenced by the officer's certificate attached to or following the will in the form required by law ("Will"), and no objection having been made to its probate, and finding that the Decedent died on _____; it is hereby ADJUDGED that:

- The Will dated _____, and attested by _____ as subscribing and attesting witnesses, is admitted to probate according to law as the last Will of the Decedent.

ORDERED

Circuit Judge

PORD

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

ORDER ADMITTING CODICIL TO PROBATE

(Summary Administration: Self-proved or Oath of Attesting Witness)

The instrument presented to this Court as the above Decedent's final codicil, having been legally executed, and *either a)* established by the oath of a subscribing and attesting witness as being the Decedent's last will, *or b)* made self-proved by the Decedent's acknowledgment and the witnesses' affidavits, each made before an officer authorized to administer oaths and evidenced by the officer's certificate attached to or following the codicil in the form required by law, and no objection having been made to its probate, and finding that the Decedent died on _____; it is hereby ADJUDGED that:

- The codicil dated _____, and attested by _____ as subscribing and attesting witnesses, is admitted to probate according to law as the codicil of the Decedent.

ORDERED

Circuit Judge

PORD

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

**ORDER DETERMINING HOMESTEAD STATUS OF REAL PROPERTY
(Testate)**

On the petition of (petitioner's name) _____ for an order determining homestead status of real property (the "Property"), all interested persons having been served proper notice of the petition and hearing, or having waived notice thereof, the court finds that:

1. The decedent died testate and was domiciled in Pinellas County, Florida;
2. Select only one:
☐ The decedent was survived by a spouse, but no minor child;
☐ The decedent was NOT survived by a spouse or minor child;
3. Select only one:
☐ Decedent's homestead was devised to the decedent's spouse;
☐ Decedent's homestead was devised to one or more heirs of the decedent;
4. At the time of death, the decedent owned and resided on the Property described in the petition; it is
ADJUDGED that the following-described Property:

Residential Address _____

Legal Description: _____

constituted the homestead of the decedent within the meaning of Section 4 of Article X of the Constitution of the State of Florida. It is

ADJUDGED FURTHER that, as of the decedent's date of death, the Property was validly devised to and the constitutional exemption from the claims of decedent's creditors inured to the following persons:

Name	Address	Relationship	Share
_____	_____	_____	_____

It is ADJUDGED FURTHER that those who are in possession of the property are authorized and directed to surrender all or any property which may be in their possession or control to the parties above, and that they shall have no further responsibility with respect to it.

ORDERED

Circuit Judge

PORD

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

ORDER DETERMINING EXEMPT PROPERTY

On the petition of (petitioner's name) _____, for an Order Determining Exempt Property, the court finding that all interested persons have been served proper notice of the petition, or having waived notice thereof; that the material allegations of the petition are true; that the decedent was domiciled in Pinellas County, Florida, at the time of death; and that:

Name

Relationship to Decedent

are entitled to claim exempt property under Section 732.402 of the Florida Probate Code; it is therefore

ADJUDGED that the following property shall be distributed as exempt property:

Asset	Description	To whom	Share or Value
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

ADJUDGED FURTHER that those who are in possession of the above property are directed to surrender the exempt property as described above, and upon compliance with this order, are released from further responsibility for the exempt property.

ORDERED

Circuit Judge

**IN THE SIXTH JUDICIAL CIRCUIT COURT IN AND FOR PINELLAS COUNTY, FLORIDA
PROBATE DIVISION**

IN RE: ESTATE OF

REF No. _____

(Clerk provides this number when filed)

(Decedent's Name)

**ORDER OF SUMMARY ADMINISTRATION
(Testate)**

On the petition of (petitioner's name) _____ for summary administration of the estate of (decedent's name) _____, deceased, the court finding that the decedent died on (date of death) _____; that all interested persons have been served proper notice of the petition and hearing or have waived notice thereof; that the material allegations of the petition are true; that the will dated (date will signed) _____, has been admitted to probate by order of this court as and for the last will of the decedent and that the decedent's estate qualifies for summary administration and an Order of Summary Administration should be entered, it is

ADJUDGED that:

1. There be immediate distribution of the assets of the decedent as follows:

Name and address	Property/Asset	Amount or Share

2. Those to whom specified assets of the decedent's estate are distributed by this order have the right to receive and collect those assets and to maintain actions to enforce their rights.
3. Debtors of the decedent, those holding property of the decedent, and those with whom securities or other property of decedent are registered are authorized and directed to comply with this order by paying, delivering or transferring to the beneficiaries specified above the parts of the decedent's estate distributed to them by this order, and the persons so paying, delivering or transferring shall not be accountable to anyone else for the property.

ORDERED

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT,
IN AND FOR PINELLAS COUNTY, FLORIDA;
PROBATE DIVISION**

IN RE: ESTATE OF

(The clerk will provide these numbers)

File No. _____

Deceased.

Division _____

AFFIDAVIT OF HEIRS

For purposes of this document, you must list ALL RELATIVES of the decedent. If the relative was deceased at the time of the decedent's death, please provide the deceased relative's name, indicate deceased, and date of death. Answering with an N/A, not applicable, or any other such designation is inappropriate for this document. If there are no other relatives for a particular category, write "None." When appropriate you must indicate if the relationship is that of a half-relative (i.e. half-brother or half-sister).

1. Spouse of Decedent. (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

1a. Decedent's former spouses (due to death or divorce). Please provide name, age, and address. If the former spouse is deceased, please indicate name and date of death. If Decedent and former spouse were divorced please indicate name of former spouse and date of divorce.

2. Children of the Decedent, or descendants of deceased children. (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death). If any of the children are not biologically related to both the decedent and the spouse at the time of death, provide the name of that particular child's biological parent.

3. Parents of the Decedent. (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

4. Siblings, and descendants of the deceased siblings. You must indicate whether the relationship is that of a half-relative (i.e. half-brother or half-sister). (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

5. Grandparents. (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

6. Aunts and Uncles of the Decedent. (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

7. Kindred of last deceased spouse (ONLY IF filing intestate and is not previously listed above). (Provide name, age, and address; or if deceased, provide name, indicate deceased, and date of death).

8. I, the affiant, am _____ am not _____ related to the decedent as follows _____
_____. I have known the decedent for _____ years. Decedent
_____ died on _____.

Under penalties of perjury, I declare that I have read the foregoing Affidavit of Heirs and the facts stated therein are true.

(DO NOT sign until you are in front of a clerk or notary.)

(Signature of Affiant)

(Address of Affiant)

(City, State, Zip)

(Telephone)

(Date Signed)

Subscribed and sworn to (or affirmed) before me on _____ by _____.

He/she is personally known to me or has presented _____ as identification.

By Notary:

Signature of Notary

-- OR --

Ken Burke,
Clerk of Circuit Court & Comptroller
Pinellas County, Florida

Name of Notary typed, printed or stamped

By: _____
Deputy Clerk
(seal)

Commission Number & Expiration Date

To all parties without an attorney to represent them:

Florida Rule of General Practice and Judicial Administration 2.530 provides for the use of communication technology within the court. Please fill out one of the next two forms, to either provide the court with your email address(es) for communication purposes or to request to be excused from email service. This is mandatory.

PLEASE NOTE: You **CAN NOT** file your paperwork via email or GovQA. You may electronically file your documents through the Florida E-filing Portal and instructions for setting up an account and electronically filing are provided on the pages following the email forms.

****** Please remember to check your SPAM folder for emails from the court. ******

**IN THE SIXTH JUDICIAL CIRCUIT COURT
IN AND FOR PINELLAS COUNTY, PROBATE COURT**

In Re:

(Decedent's Name)

Ref: _____

**DESIGNATION OF E-MAIL ADDRESS FOR A
PARTY NOT REPRESENTED BY AN ATTORNEY**

Pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.516(b)(1)(C), I,
(name)_____, designate the e-mail address(es) below for
electronic service of all documents related to this case.

By completing this form, I am authorizing the court, clerk of court,
and all parties to send copies of notices, orders, judgments, motions,
pleadings, or other written communications to me by e-mail or through
the Florida Courts E-filing Portal.

I understand that I must keep the clerk's office and the opposing
party or parties notified of my current e-mail address(es) and that all
copies of notices, orders, judgments, motions, pleadings, or other written
communications in this case will be served at the e-mail address(es) on
record at the clerk's office.

(designated e-mail address)_____

(secondary designated e-mail address(es)

(if any))_____

CERTIFICATE OF SERVICE

I certify that a copy hereof has been furnished to the clerk of court for
Pinellas County and (list any opposing parties and their email/ mailing
addresses) _____
by (e-mail) (delivery) (mail) on (date)_____.

(signature) _____ (printed name) _____

(e-mail address) _____

(address)_____

(phone number)_____

**IN THE SIXTH JUDICIAL CIRCUIT COURT
IN AND FOR PINELLAS COUNTY, PROBATE COURT**

In Re:

(Decedent's Name)

Ref: _____

**REQUEST TO BE EXCUSED FROM E-MAIL SERVICE FOR A
PARTY NOT REPRESENTED BY AN ATTORNEY**

I, (name)_____ request to be excused pursuant to Fla. R. Gen. Prac. & Jud. Admin. 2.516(b)(1)(D) from the requirements of e-mail service because I am not represented by an attorney and:

☐ I do not have an e-mail account.

☐ I do not have regular access to the internet.

By choosing not to receive documents by e-mail service, I understand that I will receive all copies of notices, orders, judgments, motions, pleadings, or other written communications by delivery or mail at the following address:

(address)_____

I understand that I must keep the clerk's office and the opposing party or parties notified of my current mailing address.

Pursuant to section 92.525, Florida Statutes, under penalties of perjury, I declare that I have read the foregoing request and that the facts stated in it are true.

Dated: _____

Signature: _____

Print name: _____

Phone number: _____

CERTIFICATE OF SERVICE

I certify that a copy hereof has been furnished to the clerk of court for Pinellas County and (list any opposing parties and their email/ mailing addresses)

by (e-mail) (delivery) (mail) on (date)_____.

(signature) _____

(printed name) _____

(phone number) _____

(address)_____

CLERK'S DETERMINATION

Based on the information provided in this request, I have determined that the applicant is excused from the e-mail service requirements of Fla. R. Gen. Prac. & Jud. Admin. 2.516(b)(1)(C).

Dated: _____ Signature of the Clerk of Court: _____

ENEXPR

**IN THE SIXTH JUDICIAL CIRCUIT COURT
IN AND FOR PINELLAS COUNTY, PROBATE COURT**

In Re:

(Decedent's Name)

Ref: _____

**NOTICE OF CHANGE OF MAILING ADDRESS
OR DESIGNATED E-MAIL ADDRESS**

I, (name) _____ certify that my (mailing address or
designated e-mail address) has changed to _____

I understand that I must keep the clerk's office and any opposing
party or parties notified of my current mailing address or e-mail address.
I will file a written notice with the clerk if my mailing address or e-mail
address changes again.

CERTIFICATE OF SERVICE

I certify that a copy hereof has been furnished to the clerk of court for
Pinellas County and (list any opposing parties and their email/ mailing
addresses) _____
by (e-mail) (delivery) (mail) on (date)_____.

(signature) _____

(printed name) _____

(e-mail address) _____

(address)_____

(phone number)_____

Creating a User Account with the Florida e-Filing Portal

Before you register, plan the following:

- a) What user name you will use. This can be an email address.
- b) What password you will use. Passwords must be between 6 and 16 characters and one character must be a number.
- c) Which security question you will use (see the drop-down with your choices below).



Select Security Question

- Mothers Maiden Name
- Favorite Pet
- High School Mascot
- College Mascot

- d) What security answer you will use.
- e) What email addresses (up to 3) will be used. The email addresses can always be changed at a later date.

User Name chosen: _____

Password chosen: _____

Security Question chosen: _____

Answer chosen: _____

Primary email address used: _____

Alternate email #1: _____

Alternate email #2: _____

When you have your information ready:

1. Go to: <https://www.myflcourtaccess.com/default.aspx>
2. Under 'Do not have an account - Register Now' select the Self-Represented Litigant role.
3. Click on 'Register'.
4. Enter a User Name. This can be an email address.
5. Create a password.
6. Re-type the password in the next field.
7. Select a Security Question,
8. Type in a Security Answer,
9. You **must** provide a First and Last Name, but there is room for a middle name and suffix.
10. Enter email address(es).

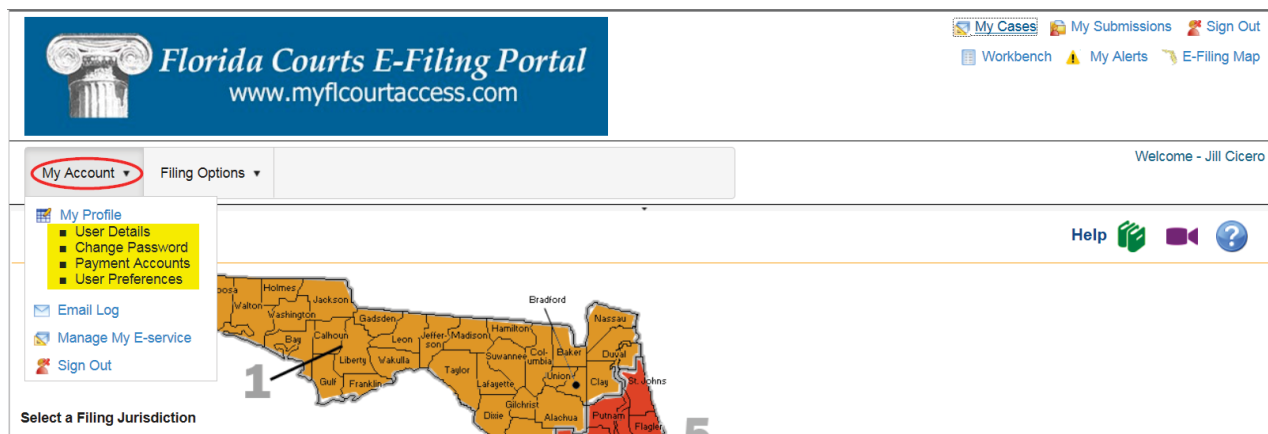
11. Enter the street address. If needed, use the second field for additional information (floor, Room, unit info, etc.)
12. Enter the city, state, and zip in their respective fields.
13. Enter a contact phone number, including area code and extension, if any.
14. Check the box for 'I'm not a robot'.
15. Click on 'Register'.
16. You will be forwarded to a page with 'Registration Complete'.
17. You will receive an automated email to confirm your information has been submitted.
18. You will receive a 2nd automated email to activate your account. Click on the link within the email.
19. You will be brought to a page that has the security question from step 7 displayed.
20. Enter your security answer from step 8.
21. Click on 'Activate.' You will be directed to a page announcing your account has been successfully activated. You may now log in from this same page and begin e-Filing.

If you forget your user name or password:

1. Go to the portal website.
2. Below the user name and password fields are buttons for 'Forgot User Name?' and 'Forgot Password?'. Click on the appropriate one.
3. You will be able to enter your **Primary** email address for assistance.

If you need to change your registration information:

1. Log in to the portal.
2. From the home page (map of Florida), click on 'My Account'.
3. Select the option under 'My Profile'.



Efiling Instructions for Self-Represented Litigants

1. Get your documents together in a digital form by scanning them into a file. Documents should be scanned using the black and white (monochrome) setting on your scanner. Scan each document separately. Do not combine documents, even if they are for the same case.
2. Log in to <https://www.myflcourtaccess.com/default.aspx> with your login and ID.
3. If you are not already on the E-filing map page, click on the E-filing Map icon in the top right-hand corner.

To file a new estate case:

4. Select 'Case Initiation'.
5. Be sure that 'Pinellas' is displayed in the county field. If it is not, either click on it from the map or select it from the dropdown.
6. Click on 'File Now'.
7. Check that Pinellas is displayed in the county. Select 'Probate' from the Division dropdown.
8. Select 'Estate' from the Case Type dropdown.
9. Select either Summary Administration Over \$1000 or Summary Administration Under \$1000, depending on the type of case you are filing from the Sub Type dropdown.
10. Click either the 'Case Parties' tab or 'Next' at the bottom of the page.
11. Click on 'Add Party'.
12. Select 'Petitioner' from the Role dropdown. Click on 'Copy from Current Filer'. Click on 'Save' (at the bottom of the screen). This will fill in all of your information so you will not have to do it again as the petitioner.
13. Click on 'Add Party' again.
14. Select 'Decedent' from the Role dropdown. Check the 'Primary Party' box.
15. Enter the decedent's name, last known address, and date of death.
16. Click on 'Save' at the bottom of the pop-up screen.
17. Click on the 'Documents' tab or 'Next' at the bottom of the page.
18. Click on 'Add'.
19. In the search bar, type in 'Petition' and hit enter. Check the 'Petition for Summary Administration' box. At the bottom of this screen, click on 'Browse' to locate the petition you saved. Double-click the document to select it. Click on 'Save'.
20. You will need to repeat steps 18 and 19 to add other documents such as the death certificate, proposed orders or consents.

21. Optional: Click on the 'Service List' tab or 'Next' at the bottom of the screen. Check the 'all' box. This will ensure that – depending on your settings – you will get confirmation emails when the case is accepted in the portal and when the clerk accepts it for filing.
22. Click on the Fees and Payments tab. Here you will make the payment for your case. You can either use a credit card or an electronic check.
23. Click on the 'Review and Submit' tab.
24. If any steps have been missed (such as the optional E-Service list), there will be a message to that effect. Either go back to the appropriate tab and make corrections as necessary or click on 'Submit'. If you are skipping the emails, you will be prompted again, but may continue without making changes.
25. You may sign out of the portal.

To file an Amended Petition or other documents after the case has already been created:

If you are already logged into the portal proceed as follows, otherwise see steps 1 through 3 of the previous page.

4. You can either:
 - a. Go into 'My Cases', find the case, and click the 'Submit' button next to it.
 - i. A pop-up window will display the case number and style and ask for confirmation that this is the case you wish to file into. Click OK.
 - b. Select 'Pleading on Existing Case'. Be sure that 'Pinellas' is displayed in the county field. Click on 'File Now'.
 - i. Check that Pinellas is displayed in the county. Select 'Probate' from the Division drop-down.
 - ii. Enter the year of the case as four digits. Ex. Ref # **16**-1234ES, enter as **2016**.
 - iii. Enter the sequence of the case or reference number. Ex. Ref# 16-**1234**ES, enter **1234**.
 - iv. Select 'Probate/Guardianship(CP)' from the case type dropdown.
5. Double-check the case number before proceeding. The Decedent's information should appear. You may go back to the case tab and re-enter the information, if necessary.
6. Skip the Parties tab. You do not need to enter the parties, as this was done when the case was originally filed. Click on the 'Documents' tab or 'Next' at the bottom of the page.

7. Click on 'Add'.
8. In the search bar type the name of your document. Check a box for your document.
9. At the bottom of this screen, click on 'Browse' to locate the document you saved. Double-click the document to select it. Click on 'Save'.
10. Optional: Click on the 'Service List' tab or 'Next' at the bottom of the screen. Check the 'all' box. This will ensure that – depending on your settings – you will get confirmation emails when the pleading is accepted in the portal and when the clerk accepts it for filing.
11. Click on the 'Review and Submit' tab (there are usually no fees required for subsequent pleadings, so you can skip that page/tab.).
12. If any steps have been missed (such as the optional E-Service list), there will be a message to that effect. Either go back to the appropriate tab and make corrections as necessary, or click on 'Submit'. If you are skipping the emails, you will be prompted again, but may continue without making changes.
13. You may sign out of the portal.

If there is a problem with your submission:

Unlike paper petitions, with the portal, we can notify you immediately by returning a document that has an issue such as:

- Missing signature
- Illegible documents
- Missing pages of petition

You should receive an email telling you that the batch (or submission) has been sent back to you or is in your Correction Queue. There should be a hyperlink in the email, or you can log into the Portal and it will appear under your alerts. The filing number will be a hyperlink. If you click on the hyperlink, you should see the filing, with a note from the clerk (as highlighted in yellow):

Filing # 277487 - Correction Queue Case Information

Help   

Note From Clerk: TEST PROBATE PENDFILING WAS SENT TO THE PENDING QUEUE

 Case Information  Case Parties  Documents  Service List  Review and Submit

Type: Trial	County: Pinellas	Division: Probate	Total Fee: \$400.00
Case #: NEW CASE	Type: ESTATE / FORMAL ADMINISTRATION	Status:	
Case Title: Circe Lannister VS			

This note is what the clerk can tell you needs to be corrected. The clerk only has 60 characters (including spaces) to relay the problem, per document within the filing. Each of the icons below the Note (outlined in red) are tabs, just as in the original filing.

Case Information: click here to change the case number on an existing pleading, or the court type or case type on a new case.

Case Parties: you will only be able to change or add parties on a **new** case, not on any subsequent pleadings.

Documents: if there is an issue with the document(s), click on REPLACE to upload a new version of the document and **keep your original filing date/time!** If you remove and then add another document, the added document will get a new date/time filing stamp.

Document	Document Group/Type	Fee	Pages	File	Size(MB)
✖ Remove ↻ Replace	Correspondence Priority Request	\$0.00	1	View sample Priority Request 1 pg.docx	0.05
✖ Remove ↻ Replace	All Petition For Formal Administration			Sample Word 6 pgs.doc	0.03
Add					
Total				Documents	0.08

If you REPLACE a document, you will keep the original date/time filing stamp. If you click on REMOVE, then ADD a new document, you will get a new date/time filing stamp.

Service List: verify that all parties you wish to receive the filing are included.

Review and Submit: When you have completed all of your changes, you can go to the bottom of this page and click 'Confirm and Submit all Now.'

Important Notes about Corrections: You have 5 business days to correct and resubmit a filing, or it will be automatically moved to the 'Abandoned Filings Queue' where it will no longer be available for correction or filing. You have the option to simply submit a new batch, but you will NOT get the original filing date/time. A new batch will mean you get a new reference number and will also receive an automated email that the old batch is being moved to abandoned filings.